

***HEARING ON MOTION IN RE: MTN TO VACATE DISMISSAL & ENTER JUDGMENT FILED BY PTLF. ON 06/09/2026**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Plaintiff moves to vacate the dismissal entered pursuant to stipulation and enter a judgment for plaintiff.

Plaintiff gave notice to defendant of its intent to enforce the terms of the stipulation by way of a notice dated March 16, 2026. Defendant filed a responsive declaration on April 7, 2026. Plaintiff filed this motion on June 9, 2026. The matter was set for September 22, 2026. The file contains no evidence, however, that plaintiff ever served the moving papers or notice of hearing date. Defendant's mailing address is contained in his declaration filed April 7, 2026.

Due to the lack of service on defendant, the motion is continued to January 12, 2027, at 9:00 a.m.

8. 9:00 AM CASE NUMBER: L25-11330

CASE NAME: WELLS FARGO BANK, N.A. VS. ANDREW LAWRENCE

***HEARING ON MOTION FOR DISCOVERY MTN TO DEEM REQ'S FOR ADMISSIONS ADMITTED & FOR NONAPPEARANCE FILED BY PLTF ON 05/29/2026**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff moves to deem admitted Requests for Admission, which were served on defendant and to which no response was made.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory, unless the party subject to the sanction acted with substantial

justification or other circumstances would make a sanction unjust. (Code of Civ. Proc. Section 2033.290(c).)

The declaration of plaintiff's counsel shows that the requests were served by mail (and electronically), and that the time for response ran without any response from defendant. Plaintiff's counsel sent a meet and confer letter, although it is not required.

The motion is granted. Sanctions are not requested.

9. 9:00 AM CASE NUMBER: L25-11532
CASE NAME: MODERN FLIRTING LLC VS. IGOR NOSOVITSKIY
***HEARING ON MOTION IN RE: NTC \$ MTN FOR ORDER VACATING AND SETTING ASIDE DEFAULT (AND DEFAULT JUDGMENT) DEC, MPA**
FILED BY: NOSOVITSKIY, IGOR
TENTATIVE RULING:

Defendant seeks to set aside the default entered against him in this breach of contract case. Defendant also seeks to set aside the default judgment, but while a judgment has been applied for, it has not yet been entered.

In defendant's declaration, he sets forth a number of different claims in defense of the suit, all of which go to the merits of the dispute. At no point does he assert that he was not served with the summons and complaint or was served improperly. The proof of service asserts that he was served by substitute service on February 15, 2026. The request to enter default was filed on April 24, 2026. Nor does defendant contend that he failed to file a responsive pleading due to mistake, inadvertence, or excusable neglect.

As a threshold matter, however, the file contains no proof of service of the motion on plaintiff's counsel. Accordingly, the motion is continued to January 12, 2027, at 9:00 a.m., to allow Defendant to serve the motion and notice of the continuance in a timely manner.

10. 9:00 AM CASE NUMBER: L25-14969
CASE NAME: ONEMAIN FINANCIAL, LLC AS SERVICER FOR ('ASF') WILMINGTON TRUST, N.A., AS ISSUER LOAN TRUSTEE FOR ONEMAIN FINANCIAL ISSUANCE TRUST 2019-2 VS. ATASHA SCOTT SIMS
***HEARING ON MOTION FOR DISCOVERY MTN TO COMPEL FURTHER RESPONSES FILED BY DEF ON 06/05/2026**
FILED BY: SCOTT SIMS, ATASHA Y
TENTATIVE RULING:

Defendant moves to compel further responses to its First Request for Production of